

23STCV09571 23STCV09571

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Case Number: 23STCV09571 Hearing Date: July 20, 2026 Dept: 514

Doris

v. Baldwin Hills Multifamily, LLC

23STCV09571

Defendant's Motion to Compel Plaintiff Fernanda Platero to Respond to Form Interrogatories (Set One)

Defendant's Motion to Compel Plaintiff Fernanda Platero to Respond to Requests for Production (Set One)

Defendant's Motion to Compel Plaintiff Rene Rubio to Respond to Form Interrogatories (Set One)

Defendant's Motion to Compel Plaintiff Rene Rubio to Respond to Requests for Production (Set One)

Tentative

The motions are granted.

The requests for sanctions are granted in part.

Background

This case arises out of the rental of residential premises.

The complaint in this action was filed on April 28, 2023. In the operative complaint, the Third Amended Complaint filed on August 19, 2024, 64 plaintiffs assert various causes of action (20 in total) against 19 named defendants (some of whom have subsequently been dismissed) and Does 1 through 100.

Currently

before the Court and set for hearing on July 20 are four discovery motions, all filed on June 17, 2026, by Defendant Baldwin Hills Multifamily, LLC ("Baldwin"):

- (1) Baldwin's Motion to Compel Plaintiff Fernanda Platero to Respond to Form Interrogatories (Set One);
- (2) Baldwin's Motion to Compel Plaintiff Fernanda Platero to Respond to Requests for Production (Set One);
- (3) Baldwin's Motion to Compel Plaintiff Rene Rubio to Respond to Form Interrogatories (Set One); and
- (4) Baldwin's Motion to Compel Plaintiff Rene Rubio to Respond to Requests for Production (Set One).

In each motion, Baldwin seeks monetary sanctions.

No opposition has been filed.

Additional discovery motions are on calendar for July 24 and August 5.

Trial is set for November 30, 2026.

Legal Standard

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd.(a).) If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (Code Civ. Proc., § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When a party moves to compel initial responses to interrogatories,
“the court shall impose a monetary sanction under Chapter 7 (commencing with
Section 2023.010) against any party, person, or attorney who unsuccessfully
makes or opposes [the motion], unless it finds that the one subject to the
sanction acted with substantial justification or that other circumstances make
the imposition of the sanction unjust.”
(Code Civ. Proc., § 2030.290, subd. (c).)

A party must respond to requests for production of documents
within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a).) If a
party to whom requests for production of documents are directed does not
provide timely responses, the requesting party may move for an order compelling
response to the demand. (Code Civ. Proc., § 2031.300, subd. (b).) There is no
time limit for a motion to compel initial responses, and no meet and confer
efforts are required. (See Code Civ. Proc., § 2031.300; Sinaiko Healthcare
Consulting, Inc., supra, 148 Cal.App.4th at p. 411.) Nor must a separate
statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a
timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a).)

When a party moves to compel initial responses to
requests for production, “the court shall impose a monetary sanction under
Chapter 7 (commencing with Section 2023.010) against any party, person, or
attorney who unsuccessfully makes or opposes [the motion], unless it finds that
the one subject to the sanction acted with substantial justification or that
other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd.
(c).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure
section 2023.010, subdivision (d), defines “[m]isuses of the discovery process”
to include “[f]ailing to respond to or to submit to an authorized method of
discovery.” Where a party or attorney
has engaged in misuse of the discovery process, the court may impose a monetary
sanction in the amount of “the reasonable expenses, including attorney’s fees,
incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020, subd.
(a).)

Discussion

On February 10, 2026, Baldwin
served Plaintiff Fernanda Platero with Form Interrogatories (Set

One) and Requests for Production (Set One).

(Webber Decls., ¶ 9 & Exhs.

D.) Plaintiff Fernanda Platero has not

served any responses to either the interrogatories or requests for production. (Webber Decls., ¶¶ 11, 14.)

Also on February 10, 2026,

Baldwin served Plaintiff Rene Rubio with Form Interrogatories (Set One) and

Requests for Production (Set One).

(Webber Decls., ¶ 9 & Exhs.

D.) Plaintiff Rene Rubio has not served

any responses to either the interrogatories or requests for production. (Webber Decls., ¶¶ 11, 14.)

Defendant Baldwin need not

show anything more. The motions to

compel are granted.

The requests for monetary sanctions are granted in part. In light of the straightforward nature of these motions and the economies of scale associated with preparing multiple, parallel discovery motions, the Court sets sanctions on each motion in the amount of \$472.50, based on 1.5 hours of attorney time multiplied by counsel's billing rate of \$275 per hour, plus a \$60 filing fee. (See Webber Decls., ¶ 15.)

Conclusion

The Court GRANTS the motions of Defendant Baldwin Hills

Multifamily, LLC to compel Plaintiffs Fernanda Platero and Rene Rubio to respond to Form Interrogatories (Set One) and Requests for Production of Documents (Set One).

The Court GRANTS IN PART Defendant's request for sanctions.

The Court ORDERS Plaintiff Fernanda Platero to serve

code-compliant verified written responses, without objections, to Defendant's Form Interrogatories (Set One) by August 17, 2026.

The Court ORDERS Plaintiff Fernanda Platero to serve

code-compliant verified written responses, without objections, to Defendant's Requests for Production (Set One) by August 17, 2026.

The Court ORDERS Plaintiff Rene Rubio to serve code-compliant verified

written responses, without objections, to Defendant's Form Interrogatories (Set One) by August 17, 2026.

The Court ORDERS Plaintiff Rene Rubio to serve code-compliant verified written responses, without objections, to Defendant's Requests for Production (Set One) by August 17, 2026.

The Court ORDERS Plaintiff Fernanda Platero to pay monetary sanctions under the Civil Discovery Act in the total amount of \$945.00 (\$472.50 per motion, multiplied by two motions) to Defendant Baldwin Hills Multifamily, LLC (through counsel) by August 17, 2026.

The Court ORDERS Plaintiff Rene Rubio to pay monetary sanctions under the Civil Discovery Act in the total amount of \$945.00 (\$472.50 per motion, multiplied by two motions) to Defendant Baldwin Hills Multifamily, LLC (through counsel) by August 17, 2026.

The Court ORDERS counsel for Defendant Baldwin Hills Multifamily, LLC to give notice and file proof of service of notice with the Court by no later than July 24, 2026.